

STATE OF NEW YORK

9234--A

2025-2026 Regular Sessions

IN ASSEMBLY

November 7, 2025

Introduced by M. of A. WOERNER -- read once and referred to the Committee on Racing and Wagering -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the racing, pari-mutuel wagering and breeding law, in relation to eligibility requirements for horses participating in the three racing levels of the New York Sire Stakes program

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The opening paragraph of subdivision 1 and subdivisions 2
2 and 3 of section 334 of the racing, pari-mutuel wagering and breeding
3 law, the opening paragraph of subdivision 1 and subdivision 2 as amended
4 by chapter 39 of the laws of 2024, and subdivision 3 as amended by chap-
5 ter 170 of the laws of 2014, are amended to read as follows:

6 The fund is further authorized and directed to conduct each year, at
7 the New York state exposition, with the approval of the director of the
8 exposition, or at any licensed pari-mutuel track in New York state, with
9 a preference given to any available licensed pari-mutuel track that is
10 five-eighths of a mile long or larger, colt, stake and overnight events
11 for standardbred horses to provide contests for two year old and three
12 year old colts and fillies at each gait of trotting and pacing. The
13 colt, stake and overnight events so conducted for two year old and three
14 year old colts and fillies at each gait of trotting and pacing hereunder
15 shall be conditioned to admit only those colts and fillies [~~dropped from~~
16 ~~a mare bred in this state and~~] sired by a stallion owned or leased and
17 permanently standing for service at and within this state at the time of
18 the said foal's conception, provided, however, that such mare, stallion,
19 and foal shall be microchipped with such microchip information which the
20 commission may request be provided and made available pursuant to
21 section two hundred twenty-five of this chapter. Such colt, stake and
22 overnight events shall be opened for nomination not earlier than the
23 first day of January in the year the event is to be held and only colts

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 and fillies and horses complying with the following standards shall be
2 eligible for such nomination:

3 2. The fund is further authorized and directed in each year, in coop-
4 eration with each licensee harness track in this state, to provide for
5 the running of stake events conditioned to admit only two year old and
6 three year old colts and fillies sired by a stallion owned or leased and
7 permanently standing for service at and within this state at the time of
8 the said foal's conception, at each gait of trotting and pacing, to be
9 known as "New York sire stakes" and to contribute to the purses, stakes
10 or prizes to be awarded in such "New York sire stakes", such sums as the
11 fund shall deem advisable. [~~The fund may establish a system that distin-~~
12 ~~guishes between (a) foals sired by a stallion standing in this state and~~
13 ~~bred within this state, (b) foals sired by a stallion standing in this~~
14 ~~state and with a mare bred outside this state, and (c) foals sired by a~~
15 ~~stallion standing in this state and dropped from a mare who was bred,~~
16 ~~and resided, in this state for at least one hundred eighty days in the~~
17 ~~year of conception.~~] The fund shall provide bonus payments to those
18 foals [~~bred~~] conceived within the state [~~that meet other conditions~~] and
19 out of mares that reside in the state for a time period defined and
20 imposed by the fund. The fund may prescribe a starting fee for such "New
21 York-bred harness horse stakes" but in no event shall such fee be less
22 than two per centum of the estimated purse for each entry. The fee
23 prescribed shall be added to the purses awarded.

24 3. [~~Subsequent to the year two thousand fourteen a~~] A foal shall be
25 eligible for the "New [~~York sire stakes~~] York-bred harness horse
26 events" if [~~conceived from a mare bred in the state and~~] sired by a
27 stallion owned by a resident of this state or leased to a resident of
28 this state for a period of no less than one year and standing for
29 service within the state at the time of the foal's conception.

30 § 2. This act shall take effect immediately.